

**State of New York
Monroe County Supreme & County Courts**

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In re: Matter of the Application for a
Risk Level Determination Pursuant to
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

Index No: None Provided by Clerk
Hearing Date: September 11, 2026
Before: Hon. Karen Bailey Turner, J.C.C.

JEFFREY BERNECKY,
NYSID No. OS6430

**DEMAND FOR DISCLOSURE AND,
IF NECESSARY, SUBPOENA DUCES
TECUM**

Respondent, Pro Se.

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(Pursuant to Correction Law § 168-n(3))

I. RELIEF SOUGHT

Respondent demands disclosure, pursuant to Correction Law § 168-n(3), of the materials itemized below — everything the Board of Examiners of Sex Offenders or the District Attorney has relied upon, or intends to rely upon at the September 11, 2026 hearing, in support of the recommended classification. To the extent any demanded material is not voluntarily provided, Respondent requests that this Court issue a subpoena duces tecum directed to the state or local record-holder in possession of it.

II. STATEMENT OF FACTS

By cover memorandum dated July 23, 2026, the New York State Board of Examiners of Sex Offenders ("the Board") forwarded to Respondent a recommendation package consisting of a Risk Assessment Instrument, a four-page Case Summary, and a Sex Offender Designation Form (collectively, the "Board's Recommendation Package"), recommending that Respondent be classified a Risk Level Three offender and designated a Predicate Sex Offender.

The Case Summary repeatedly characterizes and paraphrases the contents of a federal Presentence Investigation Report ("PSR") from Respondent's 2012 conviction (Docket No. 6:11-

CR-06045), a federal PSR from his 2018 conviction (Docket No. 6:18-CR-06018-DGL-MWP), and a Board Position Statement dated June 1, 2012, none of which was provided to Respondent along with the Board's Recommendation Package. The Case Summary does not identify, by page or paragraph, which portions of either PSR its factual assertions are drawn from anywhere in its four pages. The Case Summary also describes a May 2017 sexual-history polygraph re-test and its results, without providing the underlying polygraph materials.

A genuine dispute exists concerning the determinations reflected in the Board's Recommendation Package, including, among other things, the reliability of Case Summary content sourced from the federal PSRs and the accuracy of specific factual assertions drawn from them, including the disputed volume figures attributed to the 2012 conviction. This dispute triggers Correction Law § 168-n(3)'s disclosure-and-subpoena mechanism.

III. STATUTORY BASIS

Correction Law § 168-n(3) requires that, "[a]t least twenty days prior to the determination proceeding, the sentencing court shall notify the district attorney, the sex offender and the sex offender's counsel, in writing, of the date of the determination proceeding and shall also provide the district attorney, the sex offender and the sex offender's counsel with a copy of the recommendation received from the board and any statement of the reasons for the recommendation received from the board."

The statute further provides: "Where there is a dispute between the parties concerning the determinations, the court shall adjourn the hearing as necessary to permit the sex offender or the district attorney to obtain materials relevant to the determinations from the state board of examiners of sex offenders or any state or local facility, hospital, institution, office, agency, department or division. Such materials may be obtained by subpoena if not voluntarily provided to the requesting party." Correction Law § 168-n(3).

This demand is also grounded in the foundation *People v. Mingo* itself requires before an unattributed hearsay assertion in a case summary may be given weight at a SORA hearing. Reliable

hearsay is admissible at a SORA hearing only where "a reasonable person would deem it trustworthy," and where a specific assertion is challenged, the proponent must establish that reliability "either through a pre-hearing affirmation, an offer of proof, or by testimony from a witness with knowledge of the internal procedures." *People v. Mingo*, 12 N.Y.3d 563, 573-74 (2009). Respondent has identified, in his Memorandum of Law in Support of a Level Two Risk Classification, a series of specific Case Summary assertions that lack any pinpoint citation to their claimed federal source and that this record now shows do not match that source in at least some particulars. The materials demanded below are what would let Respondent, or counsel if assigned, either confirm or test each of those assertions against its actual source — and what the People would need to produce in order to lay the *Mingo* foundation those assertions currently lack.

IV. DEMAND

Pursuant to Correction Law § 168-n(3), Respondent demands production of the following, and states that he will seek a subpoena duces tecum for any item not voluntarily provided:

1. The complete Board of Examiners of Sex Offenders recommendation package concerning Respondent, NYSID# OS6430, including all materials the Board reviewed, relied upon, or considered in preparing the Risk Assessment Instrument, Case Summary, and Sex Offender Designation Form dated July 23, 2026, including any record referenced in the Case Summary but not itself produced.

2. The complete federal Presentence Investigation Report prepared in connection with *United States v. Bernecky*, Docket No. 6:11-CR-06045 (W.D.N.Y.) (the "2012 PSR"), or, at minimum, the specific pages or paragraphs of the 2012 PSR that the Board's Case Summary draws from, including the portions describing the volume of files and videos attributed to that conviction and the July 7, 2010 interview referenced in the Case Summary.

3. The complete federal Presentence Investigation Report prepared in connection with *United States v. Bernecky*, Docket No. 6:18-CR-06018-DGL-MWP (W.D.N.Y.) (the "2018

PSR"), or, at minimum, the specific pages or paragraphs of the 2018 PSR that the Board's Case Summary draws from.

4. The Board's Position Statement dated June 1, 2012, referenced in the Case Summary.

5. The 2012 judgment of conviction, Docket No. 6:11-CR-06045.

6. The 2018 judgment of conviction, Docket No. 6:18-CR-06018-DGL-MWP.

7. All polygraph-related materials in the Board's possession concerning Respondent, including any polygraph or re-test report, pretest interview notes, or examiner findings referenced or relied upon in the Case Summary's description of the May 2017 sexual-history polygraph re-test.

8. All communications between the Board and any federal probation office, including the United States Probation Office for the Western District of New York, concerning Respondent, including any communication concerning the transmission to the Board of the 2012 PSR, the 2018 PSR, or any polygraph-related material.

9. Any pre-hearing affirmation, offer of proof, or identification of a witness with knowledge of the internal procedures by which the Case Summary's unattributed factual assertions were developed, to the extent the District Attorney intends to rely on any such assertion at the hearing without producing its underlying source under items 1 through 3 above. *See Mingo*, 12 N.Y.3d at 573-74.

10. Any other material, not already encompassed by items 1 through 9, that the Board or the District Attorney has relied upon or intends to introduce, cite, or rely upon at the September 11, 2026 hearing in support of the recommended classification.

V. SCOPE OF THIS DEMAND

Correction Law § 168-n(3)'s disclosure-and-subpoena mechanism, by its own terms, reaches materials obtainable from "the state board of examiners of sex offenders or any state or local facility, hospital, institution, office, agency, department or division." This demand, and any subpoena sought under it, is directed to the Board and to other state or local record-holders within that description — including, as applicable, the New York State Division of Criminal Justice

Services and the Department of Corrections and Community Supervision — and, as to items within the District Attorney's own possession or control, to the District Attorney directly.

This demand is not, and should not be read as, an application to compel production of records held exclusively by a federal court or a federal probation office. To the extent Respondent seeks the underlying federal sentencing transcripts themselves, or other materials held only in the federal criminal dockets, that relief would require a separate application made directly in those dockets and is not sought by this demand.

VI. WHEREFORE

WHEREFORE, Respondent respectfully requests that this Court:

1. direct the Board of Examiners of Sex Offenders and the District Attorney to voluntarily produce the materials demanded above;

2. to the extent any demanded material is not voluntarily produced, issue a subpoena duces tecum, pursuant to Correction Law § 168-n(3), directed to the Board of Examiners of Sex Offenders and/or any other state or local facility, hospital, institution, office, agency, department, or division in possession of the demanded materials; and

3. grant such other and further relief as the Court deems just and proper.

Dated: [____], 2026
Rochester, New York

Respectfully submitted,

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